HIST 350 · GROUP 4 · MORGAN STATE UNIVERSITY

THE NAME CHANGES. THE FUNCTION DOES NOT.

"Slavery was abolished, but the logic of **controlling and extracting** *from Black bodies was rebuilt in new legal form."*

SIX AREAS OF CONTROL · THREE PILLARS · ONE CONTINUOUS LINE

OPENING QUESTION / CASE FILE 01

If slavery was abolished in 1865, *why did prisons become overrun with Black bodies?*

THE ANSWER IS ASSEMBLED ACROSS TEN PANELS →

FOLLOW THE RED THREAD — 1619 → PRESENT

1619 SLAVERY · 1865 13TH · 1865–66 BLACK CODES · 1868 CONVICT LEASING · 1890S JIM CROW · 1971 MASS INCARCERATION · 2000S ALGORITHM

RESIST · REMEMBER

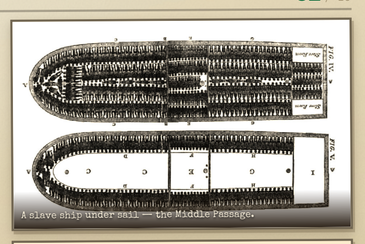
01 PAN-AFRICAN GLOBE · 02 THE RAISED FIST · 03 THE BROKEN CHAIN · 04 THE TORCH · 05 KENTE PATTERN

1619–1865 · CHATTEL SLAVERY — 02 / 10

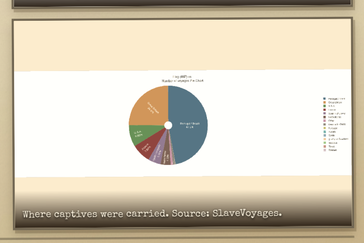
SLAVERY & THE RACIAL ORDER

Built to extract labor from Black bodies — and deny their humanity.

Enslaved people were deemed property, not persons: a fabricated rationale that kept the economic engine running. **Counterpoint:** only a tiny share of Africans in the Atlantic trade landed in North America.



A slave ship under sail — the Middle Passage.



Where captives were carried. Source: SlaveVoyages.

12.5M FORCED INTO THE ATLANTIC TRADE · ~10.7M DISEMBARKED ALIVE IN THE AMERICAS

ASK *If most enslaved Africans went elsewhere, why focus on the U.S.?*

SRC · SlaveVoyages · PBS, "How Many Slaves Landed in the U.S."

06 THE DOVE · 07 THE MEGAPHONE · 08 BARBED WIRE · 09 THE POPPY · 10 OPEN HANDS

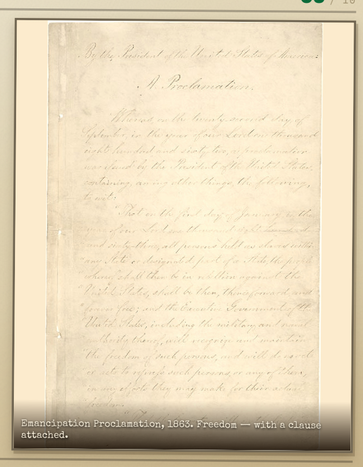
1865 · ABOLITION & EXCEPTION — 03 / 10

THE 13TH AMENDMENT LOOPHOLE

Emancipation arrived with an exception written into it.

The clause closes one door and leaves another open. Read it slowly — especially the comma before **"except."** This is the hinge of the whole board.

> *Neither slavery nor involuntary servitude, except as a punishment for crime … shall exist within the United States.*
>
> U.S. CONST. AMEND. XIII, § 1 (1865)



Emancipation Proclamation, 1863. Freedom — with a clause attached.

ASK *What does an exception do to a promise?*

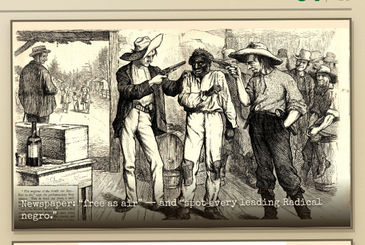
SRC · U.S. Constitution, amend. XIII · National Archives

1865–66 · RECONSTRUCTION — 04 / 10

BLACK CODES & VAGRANCY

Freedom was re-criminalized. Black life became presumptively illegal.

Unemployment, loitering, migration became crimes. Any infraction — even an unpaid fine — rolled into forced labor. **Same machine, new form.**



Newspaper: "Arse as it is" — And "not every leading Radical negro."

> *…convicted of petty crimes, like walking on the grass, vagrancy, and stealing food… Even those declared innocent were often placed in this system when they could not pay their court fees.*
>
> NEWSPAPER ACCOUNT, LIBRARY OF CONGRESS — DATE TO VERIFY

"One Vote Less." Richmond Whig — freedom met with subtraction.

ASK *Can you be free if your freedom is a crime?*

SRC · Studies in American Political Development (Cambridge UP) · LOC, Chronicling America (date under review)

1868–1940S · "SLAVERY BY ANOTHER NAME" — 05 / 10

CONVICT LEASING

The plantation was rebuilt behind prison walls — and it turned a profit.

States leased Black convicts to plantations, mines and railroads. Brutal mortality produced profit for the state and for industry. **By 1900** Black people were a large majority of Southern convicts.

Reward poster: five escaped convicts from the Chattahoochee brick works.

Convict laborers with shovels, early 1900s.

~73% ESTIMATED SHARE OF ALABAMA'S STATE REVENUE FROM CONVICT LEASING, LATE 1800S (APPROX.)

ASK *What is the difference between owning a person and renting their punishment?*

SRC · Blackmon, Slavery by Another Name · Alabama Archives · LOC, Inside A.

1890S–1960S · JIM CROW — 06 / 10

THE ACCUSATION

Criminal accusation became the justification for racial terror.

The "Black rapist" myth — manufactured in media and politics — justified chain gangs, racialized policing and lynching. No trial. No evidence. Just the charge. **Graphic photographs omitted by design.**

Segregated fountains "WHITE" / "COLORED."

EJI marker: lynching in Letohatchee, Alabama, 1900.

~4,400 DOCUMENTED RACIAL-TERROR LYNCHINGS OF BLACK PEOPLE, **1877–1950** (EJI)

ASK *Why did the accusation matter more than the evidence?*

SRC · EJI, Lynching in America · NAACP, The Burning at Dyersburg, 15 Crisis (1…

1971–PRESENT · WAR ON DRUGS — 07 / 10

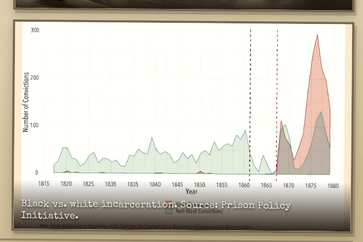
LAW & ORDER → MASS INCARCERATION

"Law and order" became the new racial control.

1971 War on Drugs. 1986 Anti-Drug Abuse Act (100:1 crack-to-cocaine). 1994 Crime Bill. Mandatory minimums. Selective enforcement.

> *"We could arrest their leaders, raid their homes… Did we know we were lying about the drugs? Of course we did." — John Ehrlichman (attributed/reported; disputed)*

Dr. King arrested — the "law and order" era.



Black vs. white incarceration. Source: Prison Policy Initiative.

~5% / ~25% U.S. SHARE OF WORLD POPULATION VS. WORLD PRISONERS · BLACK PEOPLE: **~13%** OF THE POPULATION, **37%** OF THE INCARCERATED

ASK *Can a law be race-neutral and still racist?*

SRC · EJI · Prison Policy Initiative · ACLU-WA · World Prison Brief

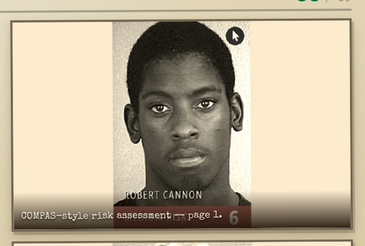
PROFIT MOVES FROM THE PLANTATION → THE PRISON → THE PLATFORM

2000S–PRESENT · THE ALGORITHM — 08 / 10

PLANTATION → ALGORITHM

The overseer's variable judgment became the algorithm's baked-in bias.

COMPAS recidivism scoring, predictive policing, facial recognition. The bias moves from a person to a system that hides behind math — **race-neutral on paper, not in outcome.**



2× BLACK DEFENDANTS FLAGGED HIGH-RISK AT TWICE THE RATE OF WHITE DEFENDANTS **(PROPUBLICA, 2016)**

10–100× HIGHER FACIAL-RECOGNITION FALSE POSITIVES FOR BLACK AND ASIAN FACES **(NIST, 2019)**

ASK *If the algorithm cannot see race, how does it reproduce racism?*

SRC · ProPublica, "Machine Bias" (2016) · NIST FRVT (2…

THE LAW STOPS SAYING "BLACK." THE OUTCOMES DO NOT.

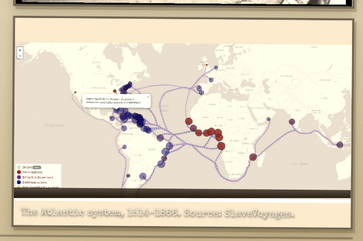
BRAZIL & ARGENTINA · 1871–PRESENT — 09 / 10

FREE, BUT BOUND

The U.S. is one example of a Diaspora pattern: emancipation produces new coercion.

Brazil's **Law of the Free Womb** (1871) "freed" newborns but bound them to their masters until 21. Argentina's **liberto** system conditioned freedom on military service. Afro-Argentine history was written out.

Afro-Argentine candombe, Buenos Aires.



The Atlantic system, 1514–1888. Source: SlaveVoyages.

21 YEARS BRAZIL'S "FREE" CHILDREN REMAINED BOUND TO THEIR MASTERS

ASK *What does "free" mean when freedom is conditioned?*

SRC · Phillips, The African Diaspora Experience · Cambridge U… · African Argum…

EVERY SYSTEM OF CONTROL MET ORGANIZED RESISTANCE

1791–PRESENT · RESISTANCE & ERASURE — 10 / 10

SAME STRUGGLE. NEW TERRAIN.

Every system of control met organized resistance — and the fight over memory is the latest front.

~800 PEOPLE FREED IN ONE NIGHT · COMBAHEE RIVER RAID, JULY 1863

RESISTANCE

1791 HAITI — Toussaint Louverture; the revolution that ended slavery in 1804.

1847 NORTH STAR — Douglass: "Right is of no sex — Truth is of no color."

1863 COMBAHEE — Tubman's raid frees ~800 people in one night.

1878 FIREBURN — Queen Mary Thomas, Agnes and Matilda lead the uprising.

MEMORY IS THE LATEST FRONT

MEMORY / ERASURE

1921 TULSA — ~35 blocks burned; 100–300+ killed (official count 36); erased for decades.

1985 MOVE — Philadelphia bombs a home from the air — and the record is contested.

Escaped enslaved people, Virginia — the first front.

THE NAME CHANGES. THE FUNCTION DOES NOT.

ASK *Whose memory is kept, and whose is erased?*

SRC · Zinn Education Project · National Archives, Tulsa · UPenn, MOVE · Digital Howard, North Star

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